X loses preliminary injunction request against California content moderation law

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(JURIST) - The social media platform X, formerly known as Twitter, lost a court case Thursday challenging a California law that obligated it to publicly reveal its content moderating procedures and issue a comprehensive service report on their moderating activity to the state.X Corp. owner Elon Musk mounted a challenge to the law in September, alleging in his complaint that the law was unconstitutional on First Amendment grounds under the US Constitution. Musk also argued that the law put an undue burden on social media companies in violation of the US Constitutions Dormant Commerce Clause.US District Judge William Shubb rejected these arguments and denied the companys request for a preliminary injunction against the law. He reasoned that Californias compelled disclosures reasonably related to a substantial government interest in requiring social media companies to be transparentso that consumers could make informed decisions about where they consume and disseminate news and information. Shubb also found that the company was not unduly burdened by the disclosure requirements since the statistics the law required were purely factual and did not force the company to engage in potentially controversial speech.California AB 587, passed in September of 2022, requires social media companies to publicly disclose a terms of service that detail permissible user activities and behavior while also identifying activities and behaviors that could be actioned on by the company. Actions defined in the law for violations of the terms of service included removal, demonetization, deprioritization, or banning, against the relevant user or relevant item of content. The law also requires social media companies to send a detailed comprehensive report semiannually to the California Attorney General regarding their terms of service, policies and actions on content that violated those terms.The author of the bill, Assembly member Jesse Gabriel, praised the courts decision in a press release:I am pleased that the Court denied Elon Musks motion and held that he is unlikely to succeed in this lawsuit. As we have repeatedly emphasized, Assembly Bill 587 is a pure transparency measure that simply requires Twitter and other companies to be upfront about if and how they are moderating content. It in no way requires any specific content moderation policies which is why it passed with strong bipartisan support. If Twitter has nothing to hide, then they should have no objection to complying with this law.Social media companies have recently faced increased scrutiny regarding disinformation and the spread of malicious content on their platforms. Meta recently announced measures to tamp down on the conduct amid the Israel-Hamas conflict. X Corp. has also faced global criticism for its handling of content. The EU announced the commencement of formal proceedings against the company under the EUs Digital Services Act, which seeks to examine dissemination of illegal content in the EU, the effectiveness of Xs measures to combat misinformation, measures taken to increase transparency and Xs allegedly deceptive design.

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